

ELIZABETH II



1967 CHAPTER xvii

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
the Royal Bank of Scotland. [14th July 1967]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Royal Bank of Scotland Short title.
Order Confirmation Act 1967.

SCHEDULE

ROYAL BANK OF SCOTLAND

Provisional Order to authorise the Royal Bank of Scotland to appoint executive directors, to amend the Royal Charters and Acts of Parliament relating to the Bank; and for other purposes.

Whereas by a Royal Charter granted by His Majesty King George the First dated 31st May, 1727, the Royal Bank of Scotland (hereinafter called "the Bank") was incorporated with full power and liberty to exercise the rights and powers of banking in that part of the United Kingdom called Scotland only and with other powers, rights and privileges of a corporate body:

And whereas further powers were conferred on the Bank by seven subsequent Charters:

1873 c. ccxvii.
1907 c. xxi.
1920 c. cxxxix.

And whereas by the Royal Bank of Scotland Act, 1873, the Royal Bank of Scotland Act, 1907, and the Royal Bank of Scotland Act, 1920, further powers were conferred on the Bank and the Bank was authorised to carry on the business of banking in any part of the United Kingdom and the said Charters were altered and amended:

And whereas it is expedient that the Bank should have powers to appoint executive directors and that the provisions of this Order with respect to such executive directors should be enacted and that any ordinary director of the Bank should be enabled to hold another office or place of profit (other than that of auditor) under the Bank:

And whereas it is expedient that the further provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act, 1936:

1936 c. 52.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title
and citations.

1.—(1) This Order may be cited as the Royal Bank of Scotland Order 1967.

(2) The Royal Bank of Scotland Act, 1873, the Royal Bank of Scotland Act, 1907, the Royal Bank of Scotland Act, 1920, and this Order may be cited together as the Royal Bank of Scotland Acts, 1873 to 1967.

1949 c. xiii.

(3) The Royal Bank of Scotland Officers' Widows' Fund Order, 1949, and this Order may be cited together as the Royal Bank of Scotland Officers' Widows' Fund Orders, 1949 and 1967.

2. In this Order unless there be something in the subject or context Interpretation.
repugnant to such construction the following words and expressions
have the meanings hereby respectively assigned to them, that is to
say:—

“ Act of 1920 ” means the Royal Bank of Scotland Act, 1920; 1920 c. cxxxix.

“ the Bank ” means the Royal Bank of Scotland;

“ the Charters ” has the meaning assigned to that expression by the
Act of 1920;

“ court of directors ” means the governor, the deputy governor
and the ordinary directors of the Bank; and

“ executive director ” means an ordinary director of the Bank
holding another office or place of profit under the Bank and
“ separate office ” means such other office or place of profit.

3.—(1) A person who holds any office or place of profit under the Bank may
Bank (other than the office of auditor) shall be eligible for office as an appoint
ordinary director of the Bank and an ordinary director of the Bank executive
may hold any other office or place of profit under the Bank (other than directors, etc.
the office of auditor) in conjunction with or in addition to his office of
director.

(2) A separate office shall be held for such period and on such terms
as to remuneration and otherwise as the court of directors may from
time to time determine.

(3) An executive director may be described as “ executive director ”
or by such other title as the court of directors from time to time
determine.

(4) For the avoidance of doubt it is hereby declared that the office of
principal official of the Bank howsoever described shall for the
purposes of this Order be deemed to be an office or place of profit
under the Bank.

4.—(1) For the purposes of the fourteenth paragraph of section 4 Preservation of
(Powers of the Bank) of the Act of 1920 (which relates to associations, pension rights
institutions, funds and trusts calculated to benefit employees or ex- and other
employees of the Bank or their wives or dependants) the expressions benefits.
“ employees ” and “ ex-employees ” where used in the said paragraph
shall respectively include executive directors and former executive
directors.

(2) For the purposes of the Royal Bank of Scotland Officers' Widows' Saving of
Fund Order, 1949, an executive director, whose separate office is 1949 c. xiii.
remunerated by salary, shall be deemed to be an officer on the existing
permanent staff of the Bank. powers, etc.

5. Nothing in this Order shall take away, diminish or prejudice any Saving of
rights, powers or privileges conferred on or enjoyed by the Bank by or existing
under the Charters or the Royal Bank of Scotland Acts, 1873, 1907 powers, etc.
and 1920, or any other Act and the Charters and the said Acts, except
in so far as altered by or inconsistent with this Order, shall be and remain
in full force and effect.

Royal Bank of Scotland
Order Confirmation Act 1967

Saving for
general Acts
relating to
banks.

6. Nothing in this Order contained shall exempt the Bank from the provisions of any general Act relating to banks passed before or after the commencement of this Order.

Costs of Order.

7. All costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Order or otherwise in relation thereto shall be paid by the Bank.

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Royal Bank of Scotland Order Confirmation Act 1967

CHAPTER xvii

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

ROYAL BANK OF SCOTLAND

1. Short title and citations.
2. Interpretation.
3. Bank may appoint executive directors, etc.
4. Preservation of pension rights and other benefits.
5. Saving of existing powers, etc.
6. Saving for general Acts relating to banks.
7. Costs of Order.